

Oakland, CA Planning Code

OAKLAND PLANNING CODE 1997 modified

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Chapter 17.120 - PERFORMANCE STANDARDS



Sections:

17.120.010 - Title, purpose, and applicability.



(Ord. No. 13357, § 3(Exh. A), 2-16-2016; Ord. 11895 § 6, 1996: prior planning code § 7700)

17.120.020 - Existing activities.

⋮

Activities existing on the effective date of the zoning regulations, or of a subsequent rezoning or other amendment thereto applying more restrictive performance standards to such activities, shall not be required to change their operations to comply with the performance standards. However, their operations shall not be so changed as to result in a greater degree of nonconformity with respect to such standards, except as otherwise authorized under the development agreement procedure in [Chapter 17.138](#). For existing activities meeting the definition specified in Section 17.114.080C., an expansion greater than twenty percent (20%) of production (e.g. non-administrative) floor area is one example of a change in operations that shall be considered an increase in the degree of nonconformity.

(Ord. No. 13172, § 3(Exh. A), 7-2-2013; Ord. No. 13064, § 2(Exh. A), 3-15-2011; Ord 12875 § 2 (part), 2008; Prior planning code § 7701)

17.120.030 - Proof of compliance.

⋮

The Director of City Planning may require the applicant for a building permit or business license to submit such information with respect to proposed machinery, processes, products, or environmental effects as may be necessary to demonstrate the ability of the proposed activities to comply with applicable performance standards. Such required information may include reports to expert consultants. Any such requirement, and any determination by the Director as to sufficiency of proof, may be appealed pursuant to the administrative appeal procedure in [Chapter 17.132](#).

(Prior planning code § 7703)

17.120.040 - Measurements.

⋮

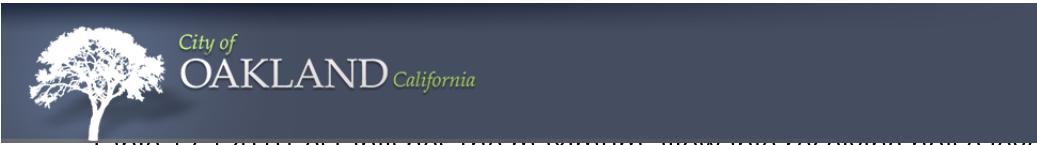
When measurements are necessary, levels of dangerous or objectionable environmental effects shall be measured in accordance with accepted engineering practice.

(Prior planning code § 7704)

17.120.050 - Noise.

⋮

All activities shall be so operated that the noise level inherently and regularly generated by these activities across real property lines shall not exceed the applicable values indicated in Subsection A., B., or C. as modified where applicable by the adjustments indicated in Subsection D. or E. Further noise restrictions are outlined in Section 8.18.010 of the Oakland Municipal Code.



able noise levels received by

Table 17.120.01 establishes the maximum allowable receiving noise levels:

TABLE 17.120.01

MAXIMUM ALLOWABLE RECEIVING NOISE LEVEL STANDARDS, RESIDENTIAL AND CIVIC

↗ EXPAND

Cumulative Number of Minutes in Either the Daytime or Night time One Hour Time Period	Daytime 7 a.m. to 10 p.m.	Nighttime 10 p.m. to 7 a.m.
20	60	45
10	65	50
5	70	55
1	75	60
0	80	65

B. Commercial Noise Level Standards. The maximum allowable noise levels received by any land use activity within any Commercial Zone (including the Housing and Business Mix HBX Zones, and the Central Estuary District D-CE-3 and D-CE-4 Zones) are described in Table 17.120.02.

Table 17.120.02 establishes the maximum allowable receiving noise levels:

TABLE 17.120.02

MAXIMUM ALLOWABLE RECEIVING NOISE LEVEL STANDARDS

↗ EXPAND

 City of OAKLAND <i>California</i>	Hour	Anytime
Period		
20		65
10		70
5		75
1		80
0		85

C. Industrial, Agricultural and Extractive Noise Level Standards. The maximum allowable noise levels received by any land use activity within any Industrial Zone are described in Table 17.120.03.

Table 17.120.03 establishes the maximum allowable receiving noise levels:

TABLE 17.120.03

MAXIMUM ALLOWABLE RECEIVING NOISE LEVEL STANDARDS, dBA

 **EXPAND**

Cumulative Number of Minutes in Any One Hour Time Period	Anytime
20	70
10	75
5	80
1	85
0	90

D.

- E. Each of the noise level standards specified above in Subsections A., B., and C. shall be reduced by five (5) dBA for a simple tone noise such as a whine, screech, or hum, noise consisting primarily of speech or music, or for recurring impulse noise such as hammering or riveting.
- F. Noise Measurement Procedures. Utilizing the "A" weighing scale of the sound level meter and the "slow" meter response (use "fast" response for impulsive type sounds), the noise level shall be measured at a position or positions at any point on the receiver's property. In general, the microphone shall be located four (4) to five (5) feet above the ground; ten (10) feet or more from the nearest reflective surface, where possible. However, in those cases where another elevation is deemed appropriate, the latter shall be utilized. If the noise complaint is related to interior noise levels, interior noise measurements shall be made within the affected residential unit. The measurements shall be made at a point at least four (4) feet from the wall, ceiling or floor nearest the noise source, with windows in the normal seasonal configuration.
- G. Temporary Construction or Demolition Which Exceed the Following Noise Level Standards.
1. The daytime noise level received by any Residential, Commercial, or Industrial land use which is produced by any nonscheduled, intermittent, short-term construction or demolition operation (less than ten (10) days) or by any repetitively scheduled and relatively long-term construction or demolition operation (ten (10) days or more) shall not exceed the maximum allowable receiving noise levels described in Table 17.120.04.

Table 17.120.04 establishes the maximum allowable receiving noise levels:

TABLE 17.120.04
MAXIMUM ALLOWABLE RECEIVING NOISE LEVEL STANDARDS, dBA

 **EXPAND**

	Daily 7 a.m. to 7 p.m.	Weekends 9 a.m. to 8 p.m.
Short-Term Operation		
Residential	80	65
Commercial, Industrial	85	70

		Weekends 9 a.m. to 8 p.m.
Long-Term Operation		
Residential	65	55
Commercial, Industrial	70	60

2. The nighttime noise level received by any land use and produced by any construction or demolition activity between weekday hours of seven (7) p.m. and seven (7) a.m. or between eight (8) p.m. and nine (9) a.m. on weekends and federal holidays shall not exceed the applicable nighttime noise level standards outlined in this Section.

- H. Residential Air Conditioning Units and Refrigeration Systems. The exterior noise level associated with a residential air conditioning unit or refrigeration systems shall not exceed fifty (50) dBA, with the exception that systems installed prior to the effective date of this Section shall not exceed fifty-five (55) dBA.
- I. Commercial Refrigeration Units. Stationary and mobile commercial refrigeration units shall not produce a noise level greater than the noise level standards set forth in this Section. Between the hours of ten (10) p.m. and seven (7) a.m., a mobile refrigeration unit shall not be located within two hundred (200) feet of any Residential Zone boundary unless such unit is within an enclosure which reduces the noise level outside the enclosure to no more than sixty (60) dBA and reduces vibration to a level below the vibration perception threshold set forth in Section [17.120.060](#).
- J. Commercial Exhaust Systems. Unnecessary noise caused by exhaust from ventilation units, or other air control device shall not produce a noise level greater than the noise level standards set forth in this Section between the hours of ten p.m. and seven a.m. and shall not be located within two hundred (200) feet of any Residential Zone boundary unless such unit is within an enclosure which reduces the noise level outside the enclosure to no more than sixty (60) dBA and reduces vibration to a level below the vibration perception threshold set forth in Section [17.120.060](#).

(Ord. No. 13357, § 3(Exh. A), 2-16-2016; Ord. No. 13302, § 5(Exh. C), 4-21-2015; Ord. No. 13251, § 5(Exh. A), 7-29-2014; Ord. No. 13172, § 3(Exh. A), 7-2-2013; Ord. No. 13168, § 5(Exh. A-2), 6-18-2013; Ord. 12875 § 2(part), 2008; Ord. 12872 § 4 (part), 2008; Ord. 11895 § 7, 1996; prior planning code § 7710)

IG, or CIX Zones more than four hundred (400) feet from any Residential Zone boundary, shall be so operated as not to create a vibration which is perceptible without instruments by the average person at or beyond any lot line of the lot containing such activities. Ground vibration caused by motor vehicles, trains, and temporary construction or demolition work is exempted from this standard.

(Ord. No. 13812, § 4(Exh. A), 7-30-2024; Ord. No. 13302, § 5(Exh. C), 4-21-2015; Ord. No. 13251, § 5(Exh. A), 7-29-2014; Ord. No. 13168, § 5(Exh. A-2), 6-18-2013; Ord. 12875 § 2(part), 2008; Ord. 11895 § 8, 1996; prior planning code § 7711)

17.120.070 - Smoke.

All Commercial and Industrial Activities located in a Residential Zone or in any HBX, D-CO, D-DT-JLI, D-CE, CIX, or M-40 Zone shall be so operated as not to emit visible smoke as dark as Ringelmann number 2 or its equivalent opacity for more than three minutes in any one-hour period, and visible smoke as dark as Ringelmann number 1 or its equivalent opacity for more than an additional seven minutes in any one-hour period. Darker or more opaque smoke is prohibited at any time.

(Ord. No. 13812, § 4(Exh. A), 7-30-2024; Ord. No. 13302, § 5(Exh. C), 4-21-2015; Ord. No. 13251, § 5(Exh. A), 7-29-2014; Ord. No. 13168, § 5(Exh. A-2), 6-18-2013; Ord. No. 13064, § 2(Exh. A), 3-15-2011; Ord. 12899 § 4, Exh. A, 2008; Ord. 12875 § 2(part), 2008; prior planning code § 7712)

17.120.080 - Particulate matter and air contaminants.

All Commercial and Industrial Activities which are located in a Residential Zone or the S-3, CIX, HBX, D-DT-JLI, D-CO, D-CE-3, or D-CE-4 Zones, or which are located in the D-CE-1, D-CE-2, D-CE-5, D-CE-6, M-40, IG, or IO Zones within four hundred (400) feet of any boundary of a Residential Zone, shall be so operated as not to emit particulate matter or air contaminants which are readily detectable without instruments by the average person at or beyond any lot line of the lot containing such activities.

(Ord. No. 13812, § 4(Exh. A), 7-30-2024; Ord. No. 13302, § 5(Exh. C), 4-21-2015; Ord. No. 13251, § 5(Exh. A), 7-29-2014; Ord. No. 13168, § 5(Exh. A-2), 6-18-2013; Ord. No. 13064, § 2(Exh. A), 3-15-2011; Ord. 12875 § 2(part), 2008; prior planning code § 7713)

17.120.090 - Odor.

When located in the zones specified below, all Commercial and Industrial Activities shall be so operated as not to emit matter causing unpleasant odors which are perceptible by the average person at the following point of determination described in Table 17.120.05. Table 17.120.05 establishes the maximum allowable receiving noise level standards.

EXPAND

Zone in Which Activities are Located	Point of Determination
Any Residential Zone, S-3, the HBX Zones, D-DT-JLI, D-CE-3, D-CE-4, CIX-1, CIX-1A, CIX-1B, CIX-1C, or CIX-1D Zone.	At or beyond any lot line of the lot containing the activities.
D-CO, D-CE-1, D-CE-2, D-CE-5, D-CE-6, M-40, CIX-2, IG or IO Zones if within four hundred (400) feet of any boundary of a Residential Zone.	At or beyond any boundary of a Residential Zone.

(Ord. No. 13812, § 4(Exh. A), 7-30-2024; Ord. No. 13302, § 5(Exh. C), 4-21-2015; Ord. No. 13251, § 5(Exh. A), 7-29-2014; Ord. No. 13168, § 5(Exh. A-2), 6-18-2013; Ord. No. 13064, § 2(Exh. A), 3-15-2011; Ord. 12875 § 2(part), 2008; prior planning code § 7714)

17.120.110 - Humidity, heat, cold, and glare.

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When located in the zones specified below, all Commercial and Industrial Activities shall be so operated as not to produce humidity, heat, cold, or glare which is perceptible without instruments by the average person at the points of determination described in Table 17.120.06. Table 17.120.06 establishes the maximum allowable receiving noise level standards.

Table 17.120.06: Points of Determination for Humidity, Heat, Cold and Glare

EXPAND

Zone in Which Activities are Located	Point of Determination
Any Residential Zone, S-3, HBX Zones, D-DT-JLI, D-CE 3, D-CE-4, CIX-1, CIX-1A, CIX-1B, CIX-1C, or CIX-1D Zones.	At or beyond any lot line of the lot containing the activities.



D-CO, D-CE-1, D-CE-2, D-CE-5, D-CE-6, M-40, CIX-2, IG or 10 Zones if within four hundred (400) feet of any boundary of a Residential Zone.

At or beyond any boundary of a Residential Zone.

([Ord. No. 13812](#), § 4(Exh. A), 7-30-2024; Ord. No. 13302, § 5(Exh. C), 4-21-2015; Ord. No. 13251, § 5(Exh. A), 7-29-2014; Ord. No. 13168, § 5(Exh. A-2), 6-18-2013; Ord. No. 13064, § 2(Exh. A), 3-15-2011; Ord. 12875 § 2(part), 2008; prior planning code § 7715)

17.120.120 - Electrical disturbance.



All Commercial and Industrial Activities located in a Residential Zone or the M-20, S-3, HBX, D-CE-3, D-CE-4, CIX-1, CIX-1A, CIX-1B, CIX-1C, or CIX-1D Zone, or located in the D-DT-JLI, D-CO, D-CE-1, D-CE-2, D-CE-5, D-CE-6, CIX-2, IG, M-30, or M-40 Zones and within four hundred (400) feet of any boundary of a Residential Zone, shall be so operated as not to cause electrical disturbance adversely affecting the operation of any equipment on any other lot.

([Ord. No. 13812](#), § 4(Exh. A), 7-30-2024; Ord. No. 13302, § 5(Exh. C), 4-21-2015; Ord. No. 13251, § 5(Exh. A), 7-29-2014; Ord. No. 13168, § 5(Exh. A-2), 6-18-2013; Ord. No. 13064, § 2(Exh. A), 3-15-2011; Ord. 12875 § 2(part), 2008; prior planning code § 7716)